

25NNCV00854 25NNCV00854

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-11

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Case Number: 25NNCV00854 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

DEMURRER

Los

Angeles Superior Court Case # 25NNCV00854

MP: Defendant

City of Los Angeles

RP: No

opposition filed, but it appears Plaintiff may have served a copy on City

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Derrick Tucker

("Plaintiff") alleges that on February 16, 2024, he rented an electric scooter from Defendant Neutron Holdings, Inc dba Lime ("Lime") and was riding it between 11829 Victory Blvd. and 11835 Victory Blvd. Plaintiff alleges that Defendants Adrian De La Hoya Jr. ("Hoya") and Victory Villas LLC ("VVL"), and Espinoza Apiaries ("EA") improperly placed wooden beams and/or similar objects strapped to a parked vehicle in a poorly lit/illuminated area. Plaintiff alleges that Hoya and VVL negligently owned, maintained, managed, and operated the premises. Plaintiff alleges that Defendants City of Los Angeles ("City") owned the public property on which the dangerous condition existed and that its employees created the condition.

The Second Amended Complaint ("SAC"), filed March 26, 2026, alleges: (1) General Negligence; (2) Premises Liability; and (3) Products Liability.

On June 26, 2026, Plaintiff dismissed without prejudice California Department of Transportation, State of California, Neutron Holdings, Inc. dba Lime, and Victory Villas LLC.

RELEVANT BACKGROUND AND MOTION ON CALENDAR:

On

April 24, 2026, City

filed a demurrer to the SAC. The

Court is not in receipt of an opposition brief.

The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted. On September 3, 2026, City filed a substantive reply addressing Plaintiff's opposition arguments.

ANALYSIS:

City demurs to the Second Cause

of Action for Premises Liability as to Count 3 – Dangerous Condition of Public Property on the grounds that it fails to allege sufficient facts because: (1) the SAC fails to allege any City-owned property; and (2) City is statutorily immune under Government Code, § 818.2 for any injury caused by its alleged failure to enforce parking laws and obstruction ordinances.

Plaintiff's opposition was due by August 28, 2026. Based on the Court's review of the documents filed in this action, Plaintiff did not file an opposition. However, City reply brief addresses the substantive arguments in Plaintiff's opposition. Thus, it appears that Plaintiff may have served but did not file a copy of the opposition.

Thus, the Court will continue the hearing on the demurrer so that Plaintiff may file the opposition. No further briefing will be permitted.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant City of Los Angeles' Demurrer came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

CITY'S DEMURRER TO THE SECOND CAUSE OF ACTION IN THE SAC IS CONTINUED TO SEPTEMBER 18, 2026 at 9:00 A.M.

PLAINTIFF IS ORDERED TO FILE THE OPPOSITION BY SEPTEMBER 14, 2026. NO FURTHER BRIEFING SHALL BE PERMITTED.

OSC RE: SANCTIONS OF \$250 AND OR DISMISSAL OF UNSERVED PARTIES IS CONTINUED TO SEPTEMBER 18, 2026 AT 9:00 A.M. PLAINTIFF IS ORDERED TO FILE A DECLARATION REGARDING SERVICE ATTEMPTS OF THE UNSERVED PARTY'S TO THE SECOND AMENDED COMPLAINT.

DEFENDANT CITY OF LOS ANGELES TO
GIVE
NOTICE.

IT IS SO ORDERED.